THE SMITH AND O'BRIEN TRUST

A Joint Revocable Living Trust

Originally dated February 1, 2010
Amended and Restated in its Entirety on November 2, 2026

JOHN ALBERT SMITH and **ALEX O'BRIEN**
Settlors and Trustees

TABLE OF CONTENTS

Article One Establishment of the Trust.....2
Article Two Family Information.....3
Article Three Trust Property.....3
Article Four Rights Reserved by the Settlors.....4
Article Five Trustees.....5
Article Six Incapacity.....6
Article Seven Administration After the Death of the First Settlor.....7
Article Eight Bypass Trust.....8
Article Nine The Survivor's Trust.....9
Article Ten Distribution After the Deaths of Both Settlors.....9
Article Eleven Trusts for Beneficiaries.....10
Article Twelve Trustee Powers.....12
Article Thirteen Retirement Benefits and Special Assets.....13
Article Fourteen General Provisions.....14

THE SMITH AND O'BRIEN TRUST

Joint Revocable Living Trust Agreement

This Trust Agreement is made on November 2, 2026, by **JOHN ALBERT SMITH** and **ALEX O'BRIEN**, residents of Los Angeles County, California, as Settlors (together, the "Settlors," and each, a "Settlor"), and JOHN ALBERT SMITH and ALEX O'BRIEN, as the initial trustees (together with every successor, the "Trustee").

Restatement. The Settlors established The Smith and O'Brien Trust by a trust agreement dated February 1, 2010 (as amended by First Amendment dated March 3, 2015) (the "Original Trust Agreement"). Exercising the power to amend reserved in the Original Trust Agreement, the Settlors amend and restate the Original Trust Agreement in its entirety, effective on the date of this instrument. This restatement does not create a new trust. The trust continues without interruption, all property held under the Original Trust Agreement remains trust property, and every prior transfer, title, and beneficiary designation in favor of the trust remains effective.

ARTICLE ONE
ESTABLISHMENT OF THE TRUST

1.1 **Name of the Trust.** This trust shall be known as **The Smith and O'Brien Trust**, dated February 1, 2010, as restated on November 2, 2026. Title to trust property may be taken in the name of "John Albert Smith and Alex O'Brien, Trustees of The Smith and O'Brien Trust, dated February 1, 2010, as restated on November 2, 2026," or in the name of any then acting Trustee in that capacity, and any reference to the trust in that or a substantially similar form shall be effective.

1.2 **Declaration of Trust.** The Settlors transfer to the Trustee, and the Trustee accepts and agrees to hold, the property described on the attached Schedules A, B, and C, together with all property later added to the trust (the "Trust Estate"), in trust, to be administered and distributed as provided in this instrument.

1.3 **Revocable Grantor Trust.** While both Settlors are living, this trust is revocable as provided in Article Four. Each Settlor intends to be treated as the owner of that Settlor's share of the trust for federal and California income tax purposes under Sections 671 through 677 of the Internal Revenue Code, and the Trustee may report trust income under the Social Security number of either Settlor as permitted by Treasury Regulations Section 1.671-4.

1.4 **Purposes.** The Settlors create this trust to manage their property during their lifetimes, to provide for each of them during any period of incapacity, to avoid probate and conservatorship proceedings, and to provide for the orderly transfer of their property at death.

1.5 **Effective Date.** This instrument takes effect when signed by the Settlors, whether or not any property has then been transferred to the Trustee.

ARTICLE TWO
FAMILY INFORMATION

2.1 **Marriage.** The Settlors are registered domestic partners of each other. Under Family Code Section 297.5, every reference in this instrument to a spouse, marriage, or community property includes a registered domestic partner, a registered domestic partnership, and the community property of registered domestic partners.

2.2 **Children.** The Settlors have no children now living or deceased.

2.3 **Later Children.** References to the children of the Settlors include any child later born to or adopted by the Settlors together. A person adopted before reaching age eighteen is treated as a child of the adopting parent.

2.4 **Intentional Omission.** Except as otherwise provided in this instrument, the Settlors have intentionally, and with full knowledge, omitted to provide for any of their heirs, including any person who claims to be a child or spouse of either Settlor.

ARTICLE THREE
TRUST PROPERTY

3.1 **Trust Estate.** The Trust Estate consists of the property listed on the Schedules, the property transferred by the Settlors' General Assignment of even date, and all other property later transferred to the Trustee by either Settlor or by any other person, by lifetime transfer, will, beneficiary designation, or otherwise, with the Trustee's consent.

3.2 **Community Property.** Property transferred to the trust as community property, and its proceeds and income, shall remain the community property of the Settlors while both are living, as provided in Family Code Section 761. Property described on Schedule A is the community property of the Settlors. For purposes of this instrument, quasi-community property is treated as community property.

3.3 **Separate Property.** Property transferred to the trust as the separate property of a Settlor, and its proceeds and income, shall remain the separate property of that Settlor. Property described on Schedule B is the separate property of John Albert Smith, and property described on Schedule C is the separate property of Alex O'Brien. The Trustee shall maintain records sufficient to identify the character of all trust property.

3.4 **Effect on Character.** Except as provided in this Article, neither the transfer of property to the trust nor the way property is titled or listed shall change its character as community or separate property. The Settlors may change the character of property only by a written agreement that satisfies Family Code Section 852.

3.5 **Community Property Agreement.** The Settlors expressly agree and declare that all property now or later held in this trust, other than property listed on Schedule B or Schedule C or later designated in a writing signed by both Settlors as the separate property of one of them, is the community property of the Settlors. Each Settlor understands that this agreement may change the character of property that would otherwise be that Settlor's separate property, that it is

intended as a transmutation under Family Code Section 852, and that each Settlor has had the opportunity to consult independent counsel before signing.

3.6 **Property Held Under Other Names.** Any property titled in the name of a Settlor under a variation of that Settlor's name that the Settlors intend to be held in this trust is trust property.

3.7 **Retirement Plans and Life Insurance.** Interests in retirement plans, individual retirement accounts, annuities, and life insurance are not transferred to the trust by this instrument or by the General Assignment. They pass according to their beneficiary designations, which may name the Trustee.

3.8 **Additions.** Any person may add property acceptable to the Trustee to the trust by lifetime transfer, will, beneficiary designation, or otherwise. Property added by reason of the death of a Settlor shall be administered as part of that Settlor's share.

ARTICLE FOUR
RIGHTS RESERVED BY THE SETTLORS

4.1 **Income and Principal During Joint Lifetimes.** While both Settlors are living, the Trustee shall pay to or apply for the benefit of the Settlors as much of the net income and principal of the community property as either Settlor requests, and to or for the benefit of each Settlor as much of the net income and principal of that Settlor's separate property as that Settlor requests. Absent a request, the Trustee shall distribute or accumulate income and principal as the Trustee considers advisable for the Settlors' health, support, and comfort.

4.2 **Revocation.** While both Settlors are living: (a) either Settlor may revoke this trust as to community property, in which case the Trustee shall promptly deliver that property to the Settlors as their community property; and (b) a Settlor may revoke this trust as to that Settlor's separate property, in which case the Trustee shall promptly deliver that property to that Settlor. A revocation is made by a signed writing delivered to the other Settlor and to the Trustee.

4.3 **Amendment.** While both Settlors are living, this instrument may be amended only by a writing signed by both Settlors and delivered to the Trustee, except that a Settlor alone may amend the provisions governing that Settlor's separate property in a manner that does not affect the other Settlor's interests.

4.4 **After the Death of a Settlor.** After the death of the first Settlor to die, the Surviving Settlor may amend, revoke, or terminate the Survivor's Trust in whole or in part, and may withdraw any of its property. The Bypass Trust shall be irrevocable, and the Surviving Settlor may not amend, revoke, or terminate it. After the death of both Settlors, this instrument may not be amended or revoked.

4.5 **Exclusive Method; Personal Powers.** The methods of revocation and amendment stated in this Article are exclusive. The powers to revoke and amend are personal to each Settlor and may not be exercised by a conservator or other legal representative. An agent acting under a durable power of attorney may exercise these powers only to the extent the power of attorney expressly authorizes it, as provided in Probate Code Section 4264.

4.6 **Residence.** Each Settlor retains the right to possess and occupy, for life and rent free, any residence held in the trust. The Settlors intend this right to preserve their eligibility for the homeowners' property tax exemption, the exclusion of gain under Section 121 of the Internal Revenue Code, and the trust-transfer exclusion from reassessment under Revenue and Taxation Code Section 62(d).

ARTICLE FIVE
TRUSTEES

5.1 **Initial Trustees.** The Settlors, John Albert Smith and Alex O'Brien, are the initial Trustees. While both serve, they shall act jointly, and both signatures are required to exercise any power of the Trustee, except that either may delegate any power to the other in a signed writing.

5.2 **Surviving or Remaining Settlor.** If either Settlor dies, resigns, or becomes incapacitated, the other Settlor shall serve as sole Trustee.

5.3 **Successor Trustees.** If both Settlors have died, resigned, or become incapacitated, the following shall serve together as co-Trustees: Pat Rivera (friend) and First Republic Trust Company. If any of them fails or ceases to serve, the others shall continue to serve. While more than one co-Trustee serves, the co-Trustees shall act by majority, and if only two serve they shall act jointly.

5.4 **Vacancy.** If no named successor is able and willing to serve, the last serving Trustee may appoint a successor in a signed writing. Failing that appointment, a majority of the adult beneficiaries then entitled to receive income (with the parent or guardian acting for any minor or incapacitated beneficiary) may appoint an individual or a bank or trust company as successor Trustee. If no successor is appointed within sixty days, any interested person may petition the court to appoint one under Probate Code Section 15660.

5.5 **Resignation.** A Trustee may resign by giving at least thirty days' written notice to the Settlors, if living, and otherwise to the co-Trustee (if any), the next successor Trustee, and the adult beneficiaries then entitled to receive income, as provided in Probate Code Section 15640.

5.6 **Removal.** While living and not incapacitated, the Settlors (or the Surviving Settlor) may remove any Trustee by a signed writing delivered to that Trustee. After the death of both Settlors, a majority of the adult beneficiaries then entitled to receive income may remove any bank or trust company serving as Trustee and replace it with another bank or trust company. Nothing in this Section limits the court's power to remove a Trustee.

5.7 **Bond.** No bond shall be required of any Trustee named or appointed under this instrument.

5.8 **Compensation.** An individual Trustee shall serve without compensation. A bank, trust company, or professional fiduciary serving as Trustee may be compensated according to its published fee schedule or, if none, reasonably. Every Trustee shall be reimbursed for reasonable expenses properly incurred in administering the trust.

5.9 **Liability of Successor Trustees.** A successor Trustee has no duty to examine the accounts or actions of a prior Trustee and is not liable for any act or omission of a prior Trustee. An individual Trustee who acts in good faith is not liable for any loss to the trust, except a loss caused by that Trustee's gross negligence, willful misconduct, or bad faith, subject to Probate Code Section 16461.

5.10 **Certification of Trust.** Any Trustee may furnish a certification of trust under Probate Code Section 18100.5, and any person may rely on it without seeing this instrument.

ARTICLE SIX
INCAPACITY

6.1 **Determination of Incapacity.** A Settlor or an individual Trustee is incapacitated if any of the following occurs:

(a) one licensed physician who has examined the person certifies in writing that the person is unable to manage the person's own financial affairs or to administer the trust prudently;

(b) a court of competent jurisdiction determines that the person lacks the capacity to manage the person's financial resources or to serve as trustee; or

(c) the person has disappeared, or is held against the person's will, for more than thirty consecutive days.

A person regains capacity in the same manner, by a written physician certificate or a court determination. Any third party may rely on a certificate delivered under this Section without further inquiry.

6.2 **Authorization to Release Health Information.** Each Settlor and each individual Trustee authorizes every physician, health care provider, and health plan to disclose to any successor Trustee named in this instrument the individually identifiable health information needed to determine that person's capacity. This authorization is intended to comply with the federal Health Insurance Portability and Accountability Act (45 C.F.R. Section 164.508) and the California Confidentiality of Medical Information Act (Civil Code Section 56.11), and it remains effective until two years after the death of the person giving it.

6.3 **Administration During Incapacity.** While a Settlor is incapacitated, the Trustee shall pay to or apply for the benefit of that Settlor, the other Settlor, and any person dependent on them, as much of the income and principal of the trust (using first that Settlor's share of community property and separate property) as the Trustee considers necessary for their health, support, and maintenance in their accustomed manner of living. The Settlors prefer to remain in their home, and the Trustee shall pay for in-home care when reasonably possible. The powers of revocation and amendment of an incapacitated Settlor are suspended during the incapacity.

ARTICLE SEVEN
ADMINISTRATION AFTER THE DEATH OF THE FIRST SETTLOR

7.1 **Definitions.** The "Deceased Settlor" is the first Settlor to die, and the "Surviving Settlor" is the other Settlor. If the Settlors die under circumstances in which the order of their deaths cannot be established by clear and convincing evidence, each Settlor shall be treated as having survived the other for purposes of that Settlor's share of community property and separate property, as provided in Probate Code Sections 103 and 220.

7.2 **Payment of Expenses.** On the death of the Deceased Settlor, the Trustee may pay from the Deceased Settlor's Share (defined below) the Deceased Settlor's legally enforceable debts (other than debts secured by real or personal property, which need not be paid before they are due), last illness and funeral expenses, expenses of administration, and any estate or inheritance taxes attributable to the Deceased Settlor's Share, except to the extent they are paid from other sources.

7.3 **Division of the Trust Estate.** After the death of the Deceased Settlor, the Trustee shall divide the Trust Estate, including any property added by reason of the Deceased Settlor's death, into two shares:

(a) the "Survivor's Share," consisting of the Surviving Settlor's interest in the community property and the Surviving Settlor's separate property; and

(b) the "Deceased Settlor's Share," consisting of the Deceased Settlor's interest in the community property and the Deceased Settlor's separate property.

The Trustee may divide community property on a non-pro-rata basis, allocating whole assets to either share, so long as each share receives property of equal aggregate value. The Survivor's Share shall be held as the "Survivor's Trust" under Article Nine.

7.4 **Disposition of the Deceased Settlor's Share.** The Trustee shall allocate to the "Bypass Trust," to be held under Article Eight, the Bypass Amount, and shall add the balance of the Deceased Settlor's Share, if any, to the Survivor's Trust.

7.5 **Bypass Amount.** The "Bypass Amount" is the largest amount, if any, that can pass free of federal estate tax by reason of the applicable exclusion amount available to the Deceased Settlor's estate under Section 2010 of the Internal Revenue Code (not including any deceased spousal unused exclusion amount), after taking into account all other property passing on account of the Deceased Settlor's death that does not qualify for the marital or charitable deduction, adjusted taxable gifts, and charges to principal that are not allowed as estate tax deductions. If the Deceased Settlor's Share is equal to or less than the Bypass Amount, the entire Deceased Settlor's Share shall be allocated to the Bypass Trust. The Trustee shall value assets at their values on the date or dates of allocation, and shall select assets that fairly represent appreciation and depreciation.

7.6 **Disclaimer by the Surviving Settlor.** Any portion of the Deceased Settlor's Share passing to the Survivor's Trust that the Surviving Settlor effectively disclaims shall be added to the Bypass Trust but held as a separate share over which the Surviving Settlor has no power of appointment or withdrawal right.

7.7 **Portability Election.** The Trustee (or the Deceased Settlor's executor) shall timely file a federal estate tax return electing portability of the Deceased Settlor's unused exclusion amount under Section 2010(c)(5)(A) of the Internal Revenue Code, unless the Surviving Settlor directs otherwise in writing. The cost of the return shall be paid from the Survivor's Trust unless the Trustee determines that another allocation is fairer.

7.8 **Tax Identification and Records.** After the Deceased Settlor's death, the Trustee shall keep separate records for each trust and shall obtain a taxpayer identification number for any trust that becomes irrevocable. The Trustee may hold the trusts as a common fund for investment.

ARTICLE EIGHT
BYPASS TRUST

8.1 **Irrevocability.** The Bypass Trust is irrevocable and may not be amended by the Surviving Settlor or any other person.

8.2 **Income.** During the Surviving Settlor's lifetime, the Trustee may pay to or apply for the benefit of the Surviving Settlor as much of the net income of the Bypass Trust as the Trustee considers necessary for the Surviving Settlor's health, education, maintenance, and support, adding any undistributed income to principal.

8.3 **Principal.** The Trustee may also pay to or apply for the benefit of the Surviving Settlor as much of the principal of the Bypass Trust as the Trustee considers necessary for the Surviving Settlor's health, education, maintenance, and support in the Surviving Settlor's accustomed manner of living. In exercising this discretion, the Trustee may consider other income and resources known to the Trustee to be reasonably available to the Surviving Settlor, and the Settlors intend that the Survivor's Trust be used first.

8.4 **Annual Withdrawal Right.** In addition, in each calendar year the Surviving Settlor may withdraw from the principal of the Bypass Trust (other than any separate share held for disclaimed property) an amount not exceeding the greater of five thousand dollars ($5,000) or five percent (5%) of the value of that principal on the last day of the year. This right is noncumulative, lapses at the end of each calendar year to the extent not exercised, and may be exercised only by a signed writing delivered to the Trustee.

8.5 **Limited Power of Appointment.** On the Surviving Settlor's death, the Trustee shall distribute the remaining principal and undistributed income of the Bypass Trust (other than any separate share held for disclaimed property) to such one or more of the issue of the Settlors and organizations described in Section 2055(a) of the Internal Revenue Code, outright or in further trust, as the Surviving Settlor appoints by a will, codicil, or signed writing delivered to the Trustee during the Surviving Settlor's lifetime that specifically refers to this power. The Surviving Settlor may not appoint to the Surviving Settlor, the Surviving Settlor's estate, the Surviving Settlor's creditors, or the creditors of the Surviving Settlor's estate.

8.6 **Residence.** If a residence is held in the Bypass Trust, the Surviving Settlor may occupy it rent free for life. The Trustee may pay its taxes, insurance, and major repairs from the Bypass Trust, and may sell it and buy a replacement residence at the Surviving Settlor's request.

8.7 **Surviving Settlor as Trustee.** When the Surviving Settlor serves as Trustee of the Bypass Trust, the Surviving Settlor may make discretionary distributions to the Surviving Settlor only for health, education, maintenance, and support, and may not participate in any decision to make a distribution that would discharge the Surviving Settlor's legal obligation of support. The Surviving Settlor may appoint an independent co-Trustee to exercise any discretion that the Surviving Settlor cannot exercise.

8.8 **Distribution on the Surviving Settlor's Death.** On the Surviving Settlor's death, the Trustee shall distribute any undistributed income to the Survivor's Trust, and shall distribute the remaining principal of the Bypass Trust (to the extent not effectively appointed) as provided in Article Ten. No estate tax, debt, or expense of the Surviving Settlor shall be paid from the Bypass Trust.

ARTICLE NINE
THE SURVIVOR'S TRUST

9.1 **Revocable Trust for the Surviving Settlor.** The Survivor's Trust remains fully revocable and amendable by the Surviving Settlor as provided in Article Four.

9.2 **Income and Principal.** During the Surviving Settlor's lifetime, the Trustee shall pay to or apply for the benefit of the Surviving Settlor the entire net income of the Survivor's Trust, at least quarterly, and as much of its principal as the Surviving Settlor requests or as the Trustee considers advisable for the Surviving Settlor's health, support, maintenance, and comfort.

9.3 **General Power of Appointment.** On the Surviving Settlor's death, the Trustee shall distribute the remaining property of the Survivor's Trust to such persons or entities, including the Surviving Settlor's estate or the creditors of the Surviving Settlor's estate, as the Surviving Settlor appoints by a will, codicil, or signed writing delivered to the Trustee that specifically refers to this power.

9.4 **Expenses at the Surviving Settlor's Death.** On the Surviving Settlor's death, the Trustee may pay from the Survivor's Trust the Surviving Settlor's legally enforceable debts, last illness and funeral expenses, expenses of administration, and all estate and inheritance taxes payable by reason of the Surviving Settlor's death on property passing under this instrument.

9.5 **Unappointed Property.** The Trustee shall distribute any property of the Survivor's Trust not effectively appointed as provided in Article Ten.

ARTICLE TEN
DISTRIBUTION AFTER THE DEATHS OF BOTH SETTLORS

10.1 **Remaining Trust Estate.** On the death of the Surviving Settlor, the property of every trust under this instrument that is directed to be distributed under this Article (the "Remaining Trust Estate") shall be distributed as provided below.

10.2 **Tangible Personal Property.** The Trustee shall distribute the Settlors' tangible personal property (including household furniture and furnishings, jewelry, clothing, books, art, and personal effects, but not cash or property used in a trade or business) in accordance with any

signed and dated written memorandum left by either Settlor, the most recent controlling in case of conflict. Property not effectively disposed of by a memorandum shall be distributed as part of the residue. The Trustee may sell any item not wanted by a beneficiary and add the proceeds to the residue, and may pay the reasonable costs of storing and delivering items as an administration expense.

10.3 **Residue.** The Trustee shall distribute the balance of the Remaining Trust Estate (the "residue") as follows:

(a) 40% to **Pat Rivera** (friend). If Pat Rivera does not survive the Surviving Settlor, this share shall be distributed to the then living issue of Pat Rivera, by right of representation, or, if none, shall be added proportionately to the other shares under this Section.

(b) 35% to **Chris Rivera** (godchild). If Chris Rivera does not survive the Surviving Settlor, this share shall be added proportionately to the other shares under this Section.

(c) 25% to **American Red Cross**. If this organization is not then in existence or is not then described in Section 2055(a) of the Internal Revenue Code, this share shall be distributed to one or more such organizations, selected by the Trustee, whose purposes most nearly resemble its purposes.

Each share for an individual shall be held or distributed under Article Eleven.

10.4 **Ultimate Distribution.** If at any time no beneficiary described above is living (or in existence) to take any part of the Remaining Trust Estate, that part shall be distributed as follows: One-half to UCLA Foundation; One-half to the ACLU Foundation of Southern California.

ARTICLE ELEVEN
TRUSTS FOR BENEFICIARIES

11.1 **Application.** This Article governs every share of the Trust Estate that becomes distributable outright to an individual beneficiary on or after the death of the Surviving Settlor, or under Article Seven. A share distributable to a charitable organization shall be distributed outright.

11.2 **Lifetime Protective Trusts.** Each share for a beneficiary shall be held as a separate trust for the beneficiary's lifetime. The Trustee may distribute to or for the beneficiary as much of the net income and principal as the Trustee considers advisable for the beneficiary's health, education, maintenance, and support, considering the beneficiary's other resources and adding undistributed income to principal. The Settlors intend these trusts to protect each beneficiary's inheritance from creditors, divorce, and mismanagement, and to keep it out of the beneficiary's taxable estate.

11.3 **Beneficiary as Co-Trustee.** On reaching age 30, a beneficiary may become a co-Trustee of the beneficiary's own trust, to serve with the then acting Trustee, by a signed writing

delivered to the Trustee. A beneficiary serving as co-Trustee may participate only in distributions limited to the beneficiary's health, education, maintenance, and support.

11.4 **Distribution on the Beneficiary's Death.** On the beneficiary's death, the Trustee shall distribute the remaining trust property to such one or more of the beneficiary's spouse, the issue of the Settlors, and charitable organizations, outright or in further trust, as the beneficiary appoints by a will or signed writing that specifically refers to this power (but not to the beneficiary, the beneficiary's estate, or the creditors of either), and to the extent not effectively appointed, to the beneficiary's then living issue, by right of representation, or, if none, to the then living issue of the Settlors, by right of representation, in each case to be held under this Article, or, if none, under the Ultimate Distribution Section of Article Ten.

11.5 **Young Beneficiaries.** If any property becomes distributable outright to a beneficiary who has not reached age 21, the Trustee may hold that property in a separate trust for the beneficiary, distributing as much of the income and principal as the Trustee considers advisable for the beneficiary's health, education, maintenance, and support, and shall distribute the balance to the beneficiary at age 21. If the beneficiary dies sooner, the balance shall be distributed to the beneficiary's estate. Instead of holding the property in trust, the Trustee may distribute it to a custodian for the beneficiary under the California Uniform Transfers to Minors Act, to be held until the beneficiary reaches the oldest age permitted (age 25 if permitted by Probate Code Section 3920.5).

11.6 **Supplemental Needs Trust Terms.** If a beneficiary is disabled, receives or may need means-tested public benefits (such as Supplemental Security Income or Medi-Cal), or would lose eligibility for them by receiving a distribution, the Trustee may hold that beneficiary's share in a separate supplemental needs trust on the following terms:

(a) The Trustee may distribute income and principal, in the Trustee's sole and absolute discretion, only to supplement, and never to supplant, benefits the beneficiary receives or may receive from any public or private source. The beneficiary has no right to compel any distribution, and no part of the trust shall be considered available to the beneficiary.

(b) The Trustee may make a distribution that reduces public benefits if the Trustee determines that the beneficiary's needs will be better met by it, and may fund an ABLE account for the beneficiary under Section 529A of the Internal Revenue Code.

(c) This trust is a third-party trust funded only with property of the Settlors. It is not subject to any reimbursement or payback requirement in favor of any public agency.

(d) On the beneficiary's death, the Trustee may pay the beneficiary's funeral expenses (to the extent this does not create a claim by a public agency) and shall distribute the balance to the beneficiary's then living issue, by right of representation, or, if none, to the then living issue of the Settlors, by right of representation, subject to this Article.

11.7 **Discretion to Delay Distribution.** If the Trustee reasonably believes that a beneficiary is suffering from substance abuse, is the subject of a pending divorce, bankruptcy, or creditor claim, or would otherwise be unable to manage a distribution prudently, the Trustee may delay any outright distribution to that beneficiary and continue to hold the property in trust for the beneficiary's health, education, maintenance, and support until the Trustee determines that the circumstance no longer exists.

11.8 **Facility of Payment.** The Trustee may make any distribution for a beneficiary directly to the beneficiary, to the beneficiary's guardian or conservator, to a custodian under any Uniform Transfers to Minors Act, or by paying the beneficiary's expenses directly. The receipt of the payee is a complete discharge of the Trustee.

ARTICLE TWELVE
TRUSTEE POWERS

12.1 **General Powers.** The Trustee has all powers conferred on trustees by California law, including Probate Code Sections 16200 through 16249, as amended, and in addition the powers stated below, all of which the Trustee shall exercise in a fiduciary capacity:

(a) to retain any property received, including a residence and closely held business interests, for as long as the Trustee considers advisable, without regard to diversification;

(b) to invest and reinvest in any kind of property, subject to the Uniform Prudent Investor Act (Probate Code Section 16045 and following);

(c) to sell, exchange, grant options on, partition, or otherwise dispose of any property, publicly or privately, for cash or on credit;

(d) to manage, improve, subdivide, lease (for terms beyond the duration of any trust), and otherwise deal with real property;

(e) to borrow money for any trust purpose, from any lender, including a Trustee, and to encumber trust property;

(f) to hold securities in the name of a nominee or in street name;

(g) to open and maintain deposit, brokerage, and other accounts, and to employ and pay investment advisers, accountants, attorneys, and other agents;

(h) to continue, form, or participate in any business entity, and to vote and exercise all rights of an owner;

(i) to purchase and maintain insurance of any kind;

(j) to make, or refrain from making, any tax election, including elections to treat a trust as a qualified subchapter S trust or electing small business trust;

(k) to inspect and monitor trust property for environmental conditions and to take any action necessary to comply with environmental law;

(l) to prosecute, defend, compromise, or abandon claims in favor of or against the trust;

(m) to make loans to, purchase property from, or otherwise deal with the estate of either Settlor on fair terms;

(n) to divide any trust into separate trusts, or to combine trusts with substantially identical terms, when doing so will not materially impair any beneficiary's interests;

(o) to make distributions in cash or in kind, or partly in each, and on a non-pro-rata basis, valuing assets at their fair market values on the date of distribution;

(p) to allocate receipts and disbursements between income and principal under the California laws governing fiduciary income and principal in effect from time to time, and, when those laws do not provide a rule, in the Trustee's reasonable discretion;

(q) to terminate any trust whose value has become so low that continued administration is uneconomical, distributing the property to the persons then entitled to income;

(r) to change the situs of any trust to another jurisdiction if the Trustee determines that the change is in the beneficiaries' best interests; and

(s) to do all other acts that a prudent owner of property would do, without the need for court authorization.

12.2 **Claims and Reassessment Exclusions.** The Trustee may file claims for any available exclusion from property tax reassessment, including the parent-child exclusion under Revenue and Taxation Code Section 63.2, and may allocate a residence to a beneficiary to preserve an exclusion.

ARTICLE THIRTEEN
RETIREMENT BENEFITS AND SPECIAL ASSETS

13.1 **Retirement Benefits.** If the Trustee is the beneficiary of an individual retirement account or qualified retirement plan ("Retirement Benefits"):

(a) the Trustee may exercise every payout election available and shall withdraw at least any required minimum distribution each year;

(b) the Settlors intend each trust that receives Retirement Benefits to qualify as a "see-through" trust under Section 401(a)(9) of the Internal Revenue Code and the Treasury Regulations, and the Trustee shall deliver the required trust documentation to the plan administrator by October 31 of the year following the year of death;

(c) no Retirement Benefits shall be used to pay debts, taxes, or expenses of a Settlor's estate after September 30 of the year following the year of the Settlor's death if doing so would cause a trust to fail to qualify as a see-through trust; and

(d) the Trustee may divide Retirement Benefits into separate shares for each beneficiary and may distribute any Retirement Benefits received to the beneficiary for whom they are held.

13.2 **Digital Assets.** The Trustee may access, manage, copy, transfer, deactivate, and delete the Settlors' digital assets and electronic communications (including their content) and the devices and accounts on which they are stored. Each Settlor consents to the disclosure of the content of that Settlor's electronic communications to the Trustee under the California Revised Uniform Fiduciary Access to Digital Assets Act (Probate Code Section 870 and following).

ARTICLE FOURTEEN
GENERAL PROVISIONS

14.1 **Spendthrift Provision.** No beneficiary may voluntarily or involuntarily anticipate, assign, or encumber any interest in income or principal before actual receipt, and no interest shall be subject to the claims of a beneficiary's creditors or to legal process, to the fullest extent permitted by Probate Code Sections 15300 through 15309. This Section does not apply to a Settlor's interest in the trust.

14.2 **Survivorship.** A beneficiary (other than a Settlor) must survive the person on whose death a distribution depends, as provided in Probate Code Section 21109. No survivorship period applies between the Settlors, and the Surviving Settlor need only survive the Deceased Settlor.

14.3 **Definitions.** In this instrument:

(a) "Issue" means lineal descendants of all degrees, including persons adopted before reaching age eighteen, and "children" means the first generation of issue.

(b) A distribution to issue "by right of representation" shall be divided in the manner provided in Probate Code Section 247.

(c) "Education" includes tuition, books, room, board, and related expenses at any accredited school, college, graduate, vocational, or technical program.

(d) "Trustee" refers to the trustee or co-trustees serving at the time, whether original or successor, and the singular includes the plural and each gender includes the others.

(e) "Internal Revenue Code" means the Internal Revenue Code of 1986, as amended, and corresponding provisions of later law.

14.4 **Accounts and Notices.** While both Settlors are living, the Trustee owes duties only to the Settlors and need not account to any other beneficiary (Probate Code Section 15800). After a trust or any part of it becomes irrevocable, the Trustee shall serve the notification

required by Probate Code Section 16061.7 and shall account as required by Probate Code Section 16062, except to the extent a beneficiary waives the account in writing.

14.5 **Perpetuities.** Unless sooner terminated, every trust created under this instrument shall terminate one day before the end of the period permitted by the California Uniform Statutory Rule Against Perpetuities (Probate Code Section 21200 and following), and the Trustee shall then distribute the property to the persons then entitled to receive income.

14.6 **Governing Law.** This instrument shall be governed by the law of California, regardless of the situs of administration.

14.7 **Severability and Headings.** If any provision of this instrument is unenforceable, the remaining provisions shall remain in effect. Headings are for convenience only and do not affect meaning.

Execution. The Settlors certify that they have read this Trust Agreement, that it correctly states the terms and conditions under which the Trust Estate is to be held, administered, and distributed, and that they approve it. The Trustees accept the trust and agree to administer it according to its terms.

Signed on November 2, 2026, at Los Angeles County, California.

TRUSTORS AND TRUSTEES:

_____

JOHN ALBERT SMITH
Settlor and Trustee

_____

ALEX O'BRIEN
Settlor and Trustee

CALIFORNIA ALL-PURPOSE ACKNOWLEDGMENT

A notary public or other officer completing this certificate verifies only the identity of the individual who signed the document to which this certificate is attached, and not the truthfulness, accuracy, or validity of that document.

State of California)
County of Los Angeles)

On _____ before me,
_____ (insert name and title of the officer),
personally appeared
_____, who proved to me on the basis of satisfactory evidence to be the person(s) whose name(s) is/are subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their authorized capacity(ies), and that by his/her/their signature(s) on the instrument the person(s), or the entity upon behalf of which the person(s) acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of the State of California that the foregoing paragraph is true and correct.

WITNESS my hand and official seal.

Signature _____ (Seal)

SCHEDULE A

Community Property of John Albert Smith and Alex O'Brien

The Smith and O'Brien Trust, dated February 1, 2010, as restated on November 2, 2026

The Settlors declare that the following property is their community property and transfer it to the Trustee:

1. 456 Ocean Avenue, Santa Monica, California 90402, more particularly described as: Lot 12 of Tract 3456, in the City of Santa Monica, as per map recorded in Book 45, Page 6 of Maps..

2. All of the Settlors' community property interest in their household furniture and furnishings, jewelry, art, and other tangible personal property, and all other community property assigned to the Trustee by the Settlors' General Assignment of even date.

SCHEDULE B

Separate Property of John Albert Smith

The Smith and O'Brien Trust, dated February 1, 2010, as restated on November 2, 2026

John Albert Smith declares that the following property is John Albert Smith's separate property and transfers it to the Trustee:

None at the date of signing. Separate property of John Albert Smith added later shall be listed on an amended Schedule B or identified in the instrument of transfer.

SCHEDULE C

Separate Property of Alex O'Brien

The Smith and O'Brien Trust, dated February 1, 2010, as restated on November 2, 2026

Alex O'Brien declares that the following property is Alex O'Brien's separate property and transfers it to the Trustee:

None at the date of signing. Separate property of Alex O'Brien added later shall be listed on an amended Schedule C or identified in the instrument of transfer.